

**UNITED STATES OF AMERICA
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., et al

Respondents.

FMC Docket No. 20-14

**CONSENT MOTION OF DIRECT CHASSISLINK, INC., FLEXIVAN
LEASING, LLC, AND INTERPOOL, INC. D/B/A TRAC INTERMODAL
FOR LEAVE TO FILE A BRIEF *AMICI CURIAE***

Pursuant to Rule 73 of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.73, Direct ChassisLink, Inc., FlexiVan Leasing, LLC, and Interpool, Inc. d/b/a Trac Intermodal (the “IEPs”) hereby move with the consent of the parties for leave to file the accompanying *amici curiae* brief to assist the Commission’s consideration of the Respondent’s Petition for Reconsideration of the Commission’s February 13, 2024 Order (Order) in this proceeding. Movants are U.S. chassis providers who own almost all of the marine intermodal chassis assets that are the subject of this proceeding (i.e., the chassis made available in interoperable, multi-contributor chassis pools).

The Commission granted the IEPs leave to file a brief as *amici curiae* earlier in this proceeding. *See* Docket #145 and #146. The IEPs also participated in the proceedings before the Administrative Law Judge as nonjurisdictional third party respondents to discovery requests, providing documents to each side pursuant to subpoena (or in lieu of subpoena), and negotiating declarations with each side to avoid the burden and expense of additional discovery

The Order recognized that neither the chassis nor the IEPs themselves are subject to the Commission's jurisdiction, and accordingly the Commission cannot direct the IEPs to either take or forbear from taking any action. Order, p. 63. However, the Petition for Reconsideration suggests uncertainty as to the extent to which the Order may require the IEPs to alter their billing rules at the Pool of Pools they operate in Los Angeles / Long Beach. The IEPs thus have an interest in this proceeding, and believe they have a perspective that will assist the Commission in its consideration of the Petition.

In *Sea-Land Service, Inc. -- Possible Violations of the Shipping Act*, 29 S.R.R. 1326, 1329 (2003), the Commission rejected prior more restrictive practices and simply required amicus movants, at any stage of a proceeding, to state their interests in the proceeding and explain why their participation as an amicus curiae would be desirable. The IEPs respectfully submit that their brief is desirable to provide the Commission with a more complete understanding of the potential impact of the Order on the operation of the Pool of Pools in Los Angeles / Long Beach and potential supply chain issues stemming from the proposed relief. The IEPs are knowledgeable about these issues because they are responsible for managing the operations of the Pool of Pools.

The brief is filed conditionally herewith within seven days of the filing of OCEMA's brief, as required by Rule 73(c). Counsel for the IEPs has received written consent to the motion and filing of the brief from the parties. Because the IEPs have shown a reasonable interest in the proceeding, and that their participation would be desirable, the IEPs meet the Commission's standards and should be permitted to participate as *amicus curiae*. See *In re: Vehicle Carrier Services*, 2018 FMC Lexis 30, 1 FMC 2d 175 (2018) (allowing professors to file an amicus because they can offer a "unique perspective" on the issues in the case and they can "provide insights beyond what the parties are likely to address in their advocacy briefs.")

WHEREFORE, the IEPs respectfully request that their motion for leave to file a brief as *amici curiae* in this proceeding be granted and that the brief filed conditionally with this motion be accepted.

Respectfully submitted,

/s/ John Longstreth

John Longstreth
Elle Marie Stuart
K&L Gates LLP
1601 K Street, NW
Washington, DC 20006-4759
john.longstreth@klgates.com

*Counsel for Direct ChassisLink, Inc.; FlexiVan
Leasing, LLC; and Interpool, Inc. d/b/a TRAC
Intermodal*

March 21, 2024

CERTIFICATE OF SERVICE

I certify that, on March 21, 2024, a true and current copy of the foregoing Motion of Direct ChassisLink, Inc.; FlexiVan Leasing, LLC; and Interpool, Inc. d/b/a TRAC Intermodal for Leave to File a Brief *AMICI CURIAE* was filed electronically with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel for Complainant and counsel for the Respondents:

W. Stephen Cannon
Seth D. Greenstein
Allison Sheedy
Richard O. Levine
J. Wyatt Fore
Janice Johnson
Daniel Vitelli
Osob M. Samantar
CONSTANTINE CANNON LLP
1001 Pennsylvania Avenue, NW
Suite 1300N
Washington, DC 20004
Phone: 202-204-3500
scannon@constantinecannon.com
sgreenstein@constantinecannon.com
asheedy@constantinecannon.com
rlevine@constantinecannon.com
wfore@constantinecannon.com
jjohnson@constantinecannon.com
dvitelli@constantinecannon.com
osamantar@constantinecannon.com

Richard Pianka
American Trucking Associations, Inc.
950 N. Glebe Rd. Ste. 210
Arlington, VA 22203
(703) 838-1889
rpianka@trucking.org

Counsel for Complainant
Intermodal Motor Carriers Conference of the American Trucking Associations

Wayne R. Rohde
Christopher Raleigh
Kathryn Sobotta
Mark Rabinowitz
Cozen O'Connor
1200 Nineteenth Street, NW
Washington, D.C. 20036
wrohde@cozen.com
craleigh@cozen.com
ksobotta@cozen.com
mrabinowitz@cozen.com

Counsel for Ocean Carrier Equipment Management Association, Inc.; Consolidated Chassis Management, LLC.; CMA CGM S.A.; COSCO Shipping Lines Co. Ltd.; HMM Company Limited; Maersk A/S; MSC Mediterranean Shipping Company S.A.; Ocean Network Express Pte. Ltd.; Wan Hai Lines Ltd.; Zim Integrated Shipping Services; and co-counsel for Evergreen Line Joint Service Agreement, FMC No. 011982

Deana E. Rose
Manelli Selter PLLC
1725 I Street, NW, Suite 300
Washington, D.C. 20006
drose@mdslaw.com

Counsel for Yang Ming Marine Transport Corp.

/s/ John Longstreth